

Dynamo Gymnastics

British Gymnastics
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Safeguarding Children:

Safe Recruitment

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Approval

Approved by:	Name:	Dept.:	Date:
Standards Committee	Michelle Fulford	Corporate Services	17/07/14

Document History

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0.1	Extracts of relevant sections of BG Child Protection Policy 2008 put into a separate document entitled Safeguarding Children: Safe Recruitment. Some amendments to terminology. Inclusion of new guidance on supervision and mixed age groups.	Approved	17/07/14
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Safe Recruitment

Introduction

Safe recruitment requires safeguarding issues to be considered at every stage of the recruitment process when appointing to a position working or volunteering with children. Although the vast majority of coaches and officials/helpers are committed, dedicated people who are motivated to work within the sport for commendable reasons, it is vital that all reasonable steps are taken to ensure that any unsuitable people or people who may abuse children are prevented from working with young people.

The following procedures should be adopted and applied consistently, and help to ensure that gymnastics organisations recruit individuals who share the organisation's values and approach to safeguarding as well as providing an effective deterrent to anyone who wants to abuse children within the sport. **All BG registered bodies should review their existing practice and make any required changes.**

As people who want to abuse children may seek out various avenues to gain access to children, it is equally important that robust recruitment procedures are in place for both paid and voluntary positions. These practices must be followed at all times, even where there is only one applicant for a position.

One-off Volunteers

The only current exception to this is in the case of one-off volunteers who will only have supervised contact with children for a limited period of time. This may include:

- parents or other volunteers helping out at a club fundraiser or event;
- young people attending the club for a work experience.

Clubs who run a dedicated facility should ensure they operate a sign-in and out system for these volunteers/visitors.

Where one-off volunteering becomes more regular, e.g. more than once a month, the recruitment procedures must be fully applied.

Parents

It should be noted that it is inappropriate, and in the case of criminal records checks unlawful, to apply recruitment procedures to parents whose only role is to care for their own child, e.g. a parent of a child with a disability who attends a gymnastics session to provide one-to-one support for the child. However, in the event that the individual in question wishes to take on a role within the club that will bring responsibility for other young people the full recruitment procedures must be applied.

It is essential that the following recruitment and selection procedures are applied without unlawfully discriminating against candidates on grounds of age, disability, gender reassignment, marriage and civil partnership, pregnancy and maternity, race, religion and belief, sex and sexual orientation, and are fully compliant with the **Data Protection 1998**.

Safe Recruitment Processes

The key elements of a robust safe recruitment process will include:

Preparing Candidate Information

This should include: -

- job description that makes reference to the responsibility for safeguarding and promoting the welfare of children;
- person specification ensuring specific reference is made to suitability to work with children;
- application form, which contains appropriate safeguarding sections.

Attracting Candidates

This may be done through advertising commonly in the press and on websites. Any publicity must make clear reference to safeguarding and the use of criminal records checks as part of the recruitment process.

Scrutinising Applications

The process of analysing application forms with a view of selecting a shortlist and picking up on any discrepancies or anomalies in their paperwork, which may be addressed with the candidate at interview.

Obtaining References

References that specifically address the applicant's suitability to work with children should, with consent of the applicant, ideally be taken before interview so that any issues can be addressed at this stage.

Interview

In addition to the candidate's suitability for the role, the interview process should investigate the candidate's suitability to work with children.

Verifying

- Applicant's identity;
- Right to work in UK;
- Qualifications;
- Criminal Record Check.

An enhanced DBS or home country equivalent in line with the requirements set out in **BG Criminal Record Checks Policy and Guidelines** must be completed for anyone over the age of sixteen who has not completed a check through BG within the last three years or registered with the **DBS Update Service**.

Induction

The successful candidate should have a period of time where she/he is introduced to the organisation's safeguarding policy and procedures, an assessment of learning needs is conducted and appropriate training, coaching and mentoring are provided to address the identified needs.

Monitoring and Appraisal

An employee or volunteer should be provided with regular performance reviews, particularly during the probation period.

Candidate Information

Anyone who expresses an interest in the job or role should be sent a candidate information pack, which together with the terms and conditions for the post and the application form should include a job description and a person specification as well as information on the organisation's safeguarding policy and equality policy.

The Job description identifies the key roles and responsibilities that make up the position. As safeguarding children is everyone's responsibility, it should include the responsibility the postholder will have for safeguarding and promoting the welfare of children.

In addition to the job description, the person specification should aim to provide a profile of the 'ideal' person for the job, providing a framework within which a number of candidates can be assessed. It is standard practice to indicate which factors are essential and those that are desirable and common to identify how each aspect will be assessed, e.g. questioning at interview. An essential factor that must be included in all person specifications for roles working with young people is suitability to work with children.

Application Form

All applicants should be required to complete a standard application form, even if they have provided a *curriculum vitae* (CV). This will ensure all required details are provided and will allow for easier comparison between applicants. The application should indicate that a criminal record check will be requested as part of the pre-recruitment checks where a risk assessment has identified that it is both proportionate and relevant to the position concerned. Such positions are exempt from the **Rehabilitation of Offenders Act 1974** and require that applicants disclose all cautions, reprimands, final warnings and convictions; even those that are considered 'spent'. The **Exceptions Order 1975 (2013)** states that certain spent convictions and cautions are 'protected' and are not subject to disclosure to employers , and cannot be taken into account. Guidance and criteria on the filtering of these cautions and convictions can be found at **https://www.gov.uk/government/news/disclosure-and-barring-service-filtering**

The applicant should be asked to supply the following information:

- Current and any former names, address and other contact details;
- National Insurance number to confirm the right to work;
- Any relevant academic or vocational qualifications and details of the awarding body;
- Current BG membership number;
- A full history in chronological order of any paid or voluntary positions working with children, with start and end dates and reasons for leaving;
- A statement of the personal qualities and experience that demonstrate the applicant's suitability for the position and how she/he fulfils the person specification;
- Contact details of at least two referees (not relatives), one of whom should be a previous employer or club who have agreed to provide written comment on the individual's experience and suitability to work with children and young people. The application form should indicate that references will be sought for short-listed candidates prior to the interview, except in the case of current employers where the applicant has a justifiable objection;
- Confirmation of whether they have any convictions, cautions, reprimands or final warnings that are not "protected" as defined by the **Rehabilitation of Offenders Act 1974 (Exceptions) Order 1975 (as amended in 2013)**.

It should highlight that the successful applicant will be required to complete a criminal record check through British Gymnastics or the relevant Home Country Gymnastics governing body.

Attracting Candidates

Safeguarding needs to feature strongly in any advertising when recruiting for a position working with young people. The recruiting organisation should prepare a safeguarding statement that should feature in any publicity about the role. In addition, the organisation should include a statement advising that a criminal record check will be required as part of the recruitment process.

- Sample advertisement;
- Details of recruiting organization;
- Position and main duties and responsibilities;
- Salary (or indication of whether expenses can be claimed if the role is voluntary);
- Experience/qualifications required;
- Safeguarding statement: "British Gymnastics is committed to safeguarding children and ensuring all young people have a positive experience in the sport. Anyone recruited to work or volunteer for the organisation must be fully committed to these values"
- The use of criminal records checks as part of the recruitment and selection process.

Scrutinising Applications

All applications should be scrutinised to ensure all the required information has been provided and to identify anything of concern. This could include any discrepancies in information provided or any unexplained gaps in respect of applicants' involvement in the sport.

All candidates should be assessed equally against the criteria contained in the person specification without exception or variation and a shortlist prepared. Any concerns identified from the application form should be addressed with the applicant at interview.

Obtaining References

Prior to the interview, subject to the applicant's consent, references should be sought and, where appropriate, relevant qualifications or previous experience should be confirmed.

In the event that someone is being interviewed who has indicated she/he has previous qualifications/experience in gymnastics, the recruiting organisation should request, in writing on formal headed paper, confirmation from BG of: -

- BG membership;
- date of last criminal record check;
- any BG qualifications/awards;
- any known reason for not employing/appointing the named person.

Seeking references prior to interview is always preferable in order that any concerns can be addressed with the applicant. An applicant who does not agreed to their current employer being approached should be advised that in the event they are the preferred candidate for the job, they will be required to address any issues raised by the current employer prior to their appointment being confirmed.

In addition to the current employer, references should also be sought from any previous organisations' where the applicant worked in paid or voluntary position with children. It is useful to make use of the BG reference form for positions working with children to ensure the referee covers all the required information.

Interview

Where a position involves significant contact with young people a formal interview should be held according to correct procedures and protocol. The purpose of the interview is to carry out an assessment of the qualities of candidates in relation to the requirements of the job and their suitability to work with children. There should always be a face-to-face interview, even if there is only one candidate.

Additional information can be requested at interview to support the details contained in the application form and address/ask questions relating to any information disclosed in the self-declaration of convictions. It is also important to explore any discrepancies between the information on the application form and the information obtained in pre-interview checks.

Where the post involves working with children, it is always preferable that there are a minimum of two interviewers to allow for a full assessment of the candidate's responses. The members of an interview panel must have attended safeguarding awareness training as a minimum and have the authority to make the recruitment decision.

It is important to agree in advance the process for the interview and the questions that will be asked. These should include a number of questions that focus on suitability to work with children. These questions should aim to identify underlying attitudes and may require the interview panel members to be probing in their questioning techniques. Possible ways to elicit this type of information include asking how the applicant behaved in an actual situation involving young people, or to question why they believe specific aspects of the safeguarding policy are important.

The interview panel should take the opportunity to address any concerns arising from the information on the application form or as part of a reference. The panel should also confirm the details made in the self-declaration are correct and the willingness to complete a DBS disclosure or equivalent if required in line with **BG Criminal Record Checks Policy & Guidance**.

Verification Processes

Anyone recruiting people to work with children should adopt a checklist to be applied following the selection process, without satisfactory completion of which a firm employment offer should not be made. The checklist should include:

- Verification of identity;
- Sponsorship and Endorsement of Migrant Workers.

  If a non EU national (known as a migrant worker) wants to live/work in the UK they must apply to the UK Border Agency for a working visa under the new Points Based System – for further details refer to **www.ukba.homeoffice.gov.uk**

  BG has gained approval from the Home Office to endorse High Performance Coaches. See the **BG Endorsement Requirements** for further details.

- Verification of qualifications.

To avoid any unnecessary delays, all candidates should be instructed to bring their identity documents to the interview. Candidates must also bring with them any qualification and awards certificates.

Identity Checks

It is vital to be sure that the person is who he or she claims to be. As identity verification is required as part of the criminal record check application process, the Welfare Officer or other nominated designated person should conduct the identity verification process using the **BG Identity Verification Form (IVF).** Original identity documents must be provided and verification must be conducted in the presence of the applicant to ensure they are the person shown in photographic evidence.

Confirming the Appointment

Once a decision has been made to employ someone or invite someone to take a voluntary role within a club or organisation, an offer letter should be sent out. This letter should specify full details and requirements of the position and any probation period if appropriate. The applicant should be informed that appointment would be subject to a satisfactory criminal record check and references (if any have not yet been checked).

Criminal Records Checks

The **Protection of Freedoms Act 2012** became law in May 2012 and placed the following legal requirements on organisations:

- To not knowingly allow a barred person to work in 'Regulated Activity';
- To inform the DBS if an individual is removed from 'Regulated Activity' because they have harmed or because they pose a risk of harm to vulnerable groups (including children).

A criminal records check will confirm whether an individual is included on a barred list. BG members in regulated activity are required to complete an enhanced DBS with barring list check through BG every three years. It is the responsibility of the affiliated organisation to assess the role and determine whether a criminal record check is required in line and the appropriate level in line with **BG Criminal Records Checks Policy & Guidance**.

Where a club or other affiliated organisation is recruiting a new employee or volunteer who is already a member of BG and has completed a BG disclosure within the last three years or has registered for the **DBS Update Service**, a new BG disclosure is not compulsory and it is the decision of the recruiting organisation whether they wish to carry out the check. If it is decided not to request a new disclosure, the recruiting organisation must confirm that BG has approved the individual before an appointment is confirmed.

Prior to receipt and BG approval of the criminal record check, the individual may be permitted to undertake a role which is supervised at all times by a person in regulated activity within the affiliated organisation, for a maximum period of 6 weeks.

The BG Case Management Team is responsible for carrying out an initial assessment of any content on a disclosure and will make a suitability decision in the case of content assessed to be low risk. In the case of medium-high risk content, the **BG Case Referral Management Group (CRMG)** will be responsible for the suitability decision. BG affiliated organisations' must abide by BG decisions. BG will contact the recruiting club without delay in the event that a criminal record check contains information of significant concern.

Overseas Candidates

A DBS/Access NI/Disclosure Scotland Criminal Record Check will not provide a full picture of a criminal record for any candidate who has been resident in a foreign country. Different countries operate varying methods for providing background checks and not all countries are able to provide this service. The DBS website provides current advice on which countries are able to provide a check and the applicable procedure. Non-UK vetting must also be undertaken on British passport holders who have lived abroad in the past five years.

Induction

While the pre-recruitment processes are important, particularly to act as a deterrent to those individuals who may be considered unsuitable, perhaps the most significant time is the successful candidate's period of induction in the initial months of appointment.

There may be some standard elements of induction but a successful induction is likely to have considered the individual needs of each new recruit and will involve a variety of elements, including:

- An explanation of Club/BG Safeguarding and protecting children policy and other policies.
- Formally signing up to club policies and codes of ethics and conduct.
- Clarification of roles, responsibilities and consideration of expectations.
- An assessment of learning needs, e.g. safeguarding, coaching, first aid, equality and diversity, English (if English is not a first language).
- Coaching and mentoring.

Experienced individuals often have various mentors who support them at times throughout their career. A mentor is particularly important in an induction period and may act as a role model, cultural differences, language barriers etc.

Good induction programmes will fully support the needs of new employees or volunteers and allow them to be successfully integrated into the club. An induction period may also highlight any potential poor practice concerns and allow the club to take any necessary remedial action.

Monitoring and Appraisal

All staff and volunteers should be given the opportunity to receive feedback, either through a formal appraisal or more informally through mentoring. Although this is good practice for any voluntary or paid position, appraisals are essential for positions that involve significant contact with young people. Appraisals should be offered at regular intervals, initially at the end of a probation period and thereafter at yearly intervals. An appraisal can help to establish learning needs, review targets and consider any concerns.

All BG registered clubs must put in place a procedure to deal with complaints over staff and volunteers. Parents and all members should be made aware of the procedures for raising a complaint or concern. Provision should be made in the club rules or constitution to allow complaints and disciplinary procedures to be implemented.